TaxTMI https://www.taxtmi.com

Seeks to exempt persons only engaged in making taxable supplies, total tax on which is liable to be paid on reverse charge basis - 05/2017 - Central GST (CGST)

GOVERNMENT OF INDIA

MINISTRY OF FINANCE

DEPARTMENT OF REVENUE

CENTRAL BOARD OF EXCISE AND CUSTOMS

Notification No. 5/2017 – Central Tax

New Delhi, the 19th June, 2017

29 Jyaistha, 1939 Saka

G.S.R. 607 (E).- In exercise of the powers conferred by sub-section (2) of section 23 of the Central Goods and Services Tax Act, 2017 (12 of 2017), the Central Government hereby specifies the persons who are only engaged in making supplies of taxable goods or services or both, the total tax on which is liable to be paid on reverse charge basis by the recipient of such goods or services or both under sub-section (3) of section 9 of the said Act as the category of persons exempted from obtaining registration under the aforesaid Act.

[2]**[Provided** that nothing contained in this notification shall apply to any person engaged in the supply of any of the following goods, namely: -

(i) used cooking oil falling under heading 1518 of the First Schedule to the Customs Tariff Act, 1975 (51 of 1975);

(ii) waste and scrap of plastics falling under heading 3915 of the said First Schedule;

(iii) waste and scrap of tyres falling under heading 4004 of the said First Schedule;

(iv) metal scrap falling under Chapters 72 to 81 of the said First Schedule; or

(v) electrical and electronics waste and scrap falling under heading 8549 of the said First Schedule.**]**

2. This notification shall come into force on the 22nd day of June, 2017.

[F. No. 349/72/2017-GST]

(Dr. Sreeparvathy.S.L.)

Under Secretary to the Government of India

****

NOTES:-

1.	Inserted vide Notification No. 24/2024-Central Tax dated 09-10-2024 **w.e.f. 10-10-2024**
2.	Substituted vide Notification No. 06/2026-Central Tax dated 27-10-2026 **w.e.f. 01-11-2026** before it was read as, "[1][Provided that nothing contained in this notification shall apply to any person engaged in the supply of metal scrap, falling under Chapters 72 to 81 in the first schedule to the Customs Tariff Act, 1975 (51 of 1975).]"